

LW6208E: PATENT DRAFTING AND LITIGATION

Effective Term

Semester A 2026/27

Part I Course Overview

Course Title

Patent Drafting and Litigation

Subject Code

LW - Law

Course Number

6208E

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

One Semester

Credit Units

1.5

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

Nil

Exclusive Courses

Nil

Part II Course Details

Abstract

Patent litigation worldwide has grown substantially in both case numbers and financial amounts over the past decade - driven by innovation, NPEs, and legal changes. But to fully appreciate what is happening, this class provides the necessary

backgrounds in patent claims drafting that is driving these litigation trend. The claims section of a patent specification defines the legal boundaries of the claimed invention. In litigation, if a claim is drafted too broadly, it is vulnerable to being invalidated by prior art. If it is too narrow, a competitor can "design around" it by making changes to circumvent the claims. The emerging of Standard Essential Patent (SEP) has greatly impacted traditional infringement litigation. In a SEP case, you will argue about whether the product follows the industry standard and if a patent is considered as "essential", it means it is technically challenging to comply with the industry standard without infringing the corresponding patent. Successful completion of the course will build-up student's practical skills in patent drafting and understanding its impact on patent litigation cases.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	Identify and explain the legal requirements for patentability and predicting patentability through examine prior art.		x	x	x
2	i) Analyse the structure of a patent claims set. ii) Patent claim drafting: Theory, Format and claim sets.		x	x	x
3	Apply the principle and case law to interpret the scope of protection offered by the claim sets. Researching on relevant issues and case law to analyse a claim, assessing infringement and validity, and formulating strategic advice based on Hong Kong patent law and relevant jurisdictions patent law.		x	x	x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs		Brief Description	CILO No.	Hours/week (if applicable)
1	Seminars by the course leader	· Students will acquire knowledge of the patent law for patent drafting/litigation through a comparative approach in Hong Kong and other jurisdictions. · Students will be given guidance on their reading and research for their in-class patent claim drafting exercise and group project presentations.	1, 2, 3	3
2	Seminars by guest speakers from local IP firm and patent pool company	· Instructors will introduce students to issues, concerns and aspects of the drafting claims in specific fields. · Instructor will show how legal problems are solved by applying principles and rules and compare international legal principles related to IP law with regards to patent litigation and/or drafting	1, 2, 3	
3	Guided Preparation & Presentation of Group Patent Projects	· Students will introduce to team drafting assignment. · Students will give presentations on team drafting assignment in which they will scrutinise, analyse and evaluate issues and concerns in patent litigation and/or drafting	1, 2, 3	

Assessment Tasks / Activities (ATs)

	ATs	CILO No.	Weighting (%)	Remarks ("- " for nil entry)	Allow Use of GenAI?
1	Individual take-home assignment on drafting an independent claim protecting an invention. The assignment will assess students' abilities for analytical thinking and critical examination on relevant business IP protection issues.	1, 2, 3	25	-	No
2	Class participation with in-class exercises designed to reinforce learning, stimulate discussion, and critical thinking.	1, 2, 3	25	-	No
3	Team patent drafting assignment and team presentation. Students should demonstrate good understanding on the general patent drafting & infringement theories and the ability to apply them to the team assignment.	1, 2, 3	50	-	No

Continuous Assessment (%)

100

Examination (%)

0

Minimum Continuous Assessment Passing Requirement (%)

40

Additional Information for ATs

Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter

Students must obtain an overall mark of 40% in order to pass the course.

Applicable to students admitted from Semester A 2022/23 to Summer Term 2024

Students must obtain an overall mark of 50% in order to pass the course.

Assessment Rubrics (AR)

Assessment Task

Individual assignment (Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

Application of patent law and patent drafting principles

Excellent

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base.

Good

(B+, B, B-) Evidence of grasp of subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues; evidence of familiarity with literature.

Fair

(C+, C, C-) Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

Marginal

(D) Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

Failure

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited, or irrelevant use of literature.

Assessment Task

Class participation (Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

Good participation and contribution to in-class discussion. Interaction with instructor and question raised for discussion.

Excellent

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base and superior presentation skills.

Good

(B+, B, B-) Evidence of grasp of subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues; evidence of familiarity with literature and good presentation skills.

Fair

(C+, C, C-) Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material, and adequate presentation skills.

Marginal

(D) Sufficient familiarity with the subject matter to enable the student to progress without repeating the course and fair presentation skills.

Failure

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited, or irrelevant use of literature and poor presentation skills.

Assessment Task

Team assignment (Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

Demonstrating good understanding on the general patent drafting & infringement theories. Formulating strategic advice based on Hong Kong patent law and relevant jurisdictions patent law.

Excellent

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base.

Good

(B+, B, B-) Evidence of grasp of subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues; evidence of familiarity with literature.

Fair

(C+, C, C-) Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

Marginal

(D) Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

Failure

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited, or irrelevant use of literature.

Assessment Task

Individual assignment (Applicable to students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

Application of patent law and patent drafting principles

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Assessment Task

Class participation (Applicable to students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

Good participation and contribution to in-class discussion. Interaction with instructor and question raised for discussion.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Assessment Task

Team assignment (Applicable to students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

Demonstrating good understanding on the general patent drafting & infringement theories. Formulating strategic advice based on Hong Kong patent law and relevant jurisdictions patent law.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Part III Other Information

Keyword Syllabus

IP rights (IPR), Patent strategies, Invention, Patentability, Patent Drafting, Patent claims, Patent Litigation, FRAND, Standards Essential Patents (SEP), Patent Pools, Patent Infringement, Doctrine of Equivalents, Purposive Construction.

Important patent drafting and litigation issues:

- a. Invention Disclosure
- b. Patent specification
- c. Patent strategies
- d. Predicting patentability through Prior art searches and review
- e. Filing patent applications
- f. Patent claims drafting
- g. General guidelines and drafting claims in specific fields
- h. Patent infringement:
 - i. Literal
 - ii. Non-literal
 1. Doctrine of Equivalents
 2. Purposive Construction
 - iii. Standards Essential Patents (SEP)
 - iv. FRAND
- i. Enforcement

- i. Patent litigation and defenses
- j. SEP/FRAND related litigation

Reading List

Compulsory Readings

Title	
1	Alan DURHAM, Patent Law Essentials: A Concise Guide, Praeger Publishers Inc, 2018
2	Douglas CLARK, Intellectual Property in Hong Kong, LexisNexis, 21024
3	Saraswathy KRISHNANN, Butterworths Hong Kong patent law handbook. Patents Ordinance (Cap 514), 2023
4	Kenny WONG & Alice LEE, Intellectual Property Law and Practice in Hong Kong, Sweet & Maxwell, 2012.

Additional Readings

Title	
1	Weekly Readings: To be specified and circulated by relevant weekly speakers ahead of time.
2	Online Resources:
3	Intellectual Property Department, Hong Kong: http://www.ipd.gov.hk/eng/home.htm
4	Patent Basics, https://www.ipd.gov.hk/en/patents/patent-basics/index.html
5	Apply for a Patent, https://www.ipd.gov.hk/en/patents/apply-for-a-patent/index.html
6	Hong Kong IP Journal – Patents, https://www.ipd.gov.hk/en/hkipjournal/index.html?cat=2&section=patent
7	Patents Examination Guidelines, https://www.ipd.gov.hk/en/patents/patents-examination-guidelines/index.html
8	Patent system since December 2019 and New initiatives, https://www.ipd.gov.hk/en/patents/new-initiatives/index.html
9	Patents Ordinance (Cap. 514), https://www.elegislation.gov.hk/hk/cap514
10	WIPO:
11	WIPO Patent Drafting Manual Second edition, https://www.wipo.int/edocs/pubdocs/en/wipo-pub-867-23-en-wipo-patent-drafting-manual.pdf
12	WIPO Strategy on Standard Essential Patents 2024-2026
13	WIPO Strategy on Standard Essential Patents 2024-2026, https://www.wipo.int/publications/en/details.jsp?id=4719&plang=EN